

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK****MARK SCHAND,**

Plaintiff,

-against-

**THE CITY OF NEW YORK, SGT. GARY
CHA; and PO MONIKA MARJANOVIC,**

Defendants.

Index No.:

SUMMONSPlaintiff designates New York County
as the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
July 11, 2024**Rickner PLLC**

By:



Stephanie Panousieris

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Attorney for Plaintiff

TO:

THE CITY OF NEW YORK
New York City Law Department
100 Church Street
New York, New York 10007

SGT. GARY CHA (Shield No. 4098, Tax ID 950187)
PO MONIKA MARJANOVIC (Shield No. 2769, Tax ID 963630)
25th Precinct
120 East 119th Street
New York, NY, 10035

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK****MARK SCHAND,**

Plaintiff,

Index No.:

-against-

COMPLAINT**THE CITY OF NEW YORK, SGT. GARY
CHA; and PO MONIKA MARJANOVIC,**

Defendants.

Plaintiff Mark Schand, by his attorneys at Rickner PLLC, complaining of the Defendants, alleges, upon information, belief, and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department (“NYPD”), who violated Plaintiff’s rights by subjecting him to a wrongful custodial arrest after he was involved in a car accident.

JURISDICTION

2. This action is brought pursuant to Plaintiff’s rights under Constitution of the State of New York and the common laws and statutes of the City and State of New York.

3. An award of costs and attorney’s fees is authorized by NYC Admin. Code § 8-805(2).

4. Pursuant to New York State General Municipal Law § 50-e, Plaintiff filed a timely Notice of Claim with the New York City Comptroller and the Comptroller designated the claim as number 2023PI022110.

5. Plaintiff appeared for a hearing under New York State General Municipal Law § 50-h on March 6, 2024.

6. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

7. Venue is properly laid in the Supreme Court of the State of New York, County of New York, because the Plaintiff's claims arose in Manhattan.

8. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

9. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

PARTIES

10. Plaintiff is, and was at all times relevant to this action, a resident of New York County in the State of New York.

11. Defendant the City of New York ("City") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

12. Defendant the City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department ("NYPD.").

13. Defendant Sgt. Gary Cha (Shield No. 4098, Tax ID 950187) (hereinafter "Cha") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

14. Sgt. Cha is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

15. Sgt. Cha is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

16. Defendant PO Monika Marjanovic (Shield No. 2769, Tax ID 963630) (hereinafter “Marjanovic”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein, she was acting under color of New York state law, and acting in the course and scope of her duties. She is sued in her individual capacity.

17. PO Marjanovic is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

18. PO Marjanovic is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

19. Sgt. Cha and PO Marjanovic are referred to collectively as the “Individual Defendants.”

20. At all relevant times, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, employees and officers of NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

21. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

22. This claim arose midday on or about April 12, 2023, and thereafter, in the vicinity of East 116th street and Lexington Ave., where the Individual Defendants unlawfully assaulted, seized, battered, and arrested Plaintiff in violation of his rights.

23. Claimant was in a minor car accident and pulled over to the side of the road to await the police response. Rather than rendering him aid upon their arrival, the Individual Defendants wrongfully arrested Plaintiff and transported him to the 25th Precinct, where he was held for several hours before being issued a Desk Appearance Ticket ("DAT").

24. But Plaintiff was only ticketed with VTL violations, which do not merit a custodial arrest or detention, and instead required the Individual Defendants to ticket Plaintiff at the scene.

25. The traffic tickets were subsequently dismissed in the interest of justice by the Manhattan District Attorney's Office on or about May 2, 2023.

26. The Individual Defendants' actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff's civil rights. As such, the Individual Defendants are liable for damages to Plaintiff, as is the City of New York under the doctrine of *respondeat superior*.

**FIRST CLAIM FOR RELIEF:
ASSAULT AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

27. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

28. The Individual Defendants intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, and that such acts caused apprehension of such contact in the Plaintiff.

29. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

30. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

31. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**SECOND CLAIM FOR RELIEF:
BATTERY AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

32. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

33. The Individual Defendants intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner struck Plaintiff and handcuffed him without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

34. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

35. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

36. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**THIRD CLAIM FOR RELIEF:
FALSE ARREST AND FALSE IMPRISONMENT AGAINST
THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

37. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

38. Plaintiff was arrested, handcuffed, and detained in the absence of probable cause by the Individual Defendants.

39. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

40. Plaintiff was conscious of the confinement and did not consent to such confinement.

41. Plaintiff's arrest is *void ab initio* because Plaintiff was taken to a precinct rather than being given a process without such detainment, in violation of CPL § 150.20.

42. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

43. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

44. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**FOURTH CLAIM FOR RELIEF:
N.Y.C. ADMIN. CODE §§ 8-801 TO 8-807 AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

45. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

46. Plaintiff's right to be free from unreasonable searches and seizures was violated by the conduct of the Individual Defendants.

47. The City of New York is liable as the employer of the Individual Defendants under New York City Administrative Code § 8-803(b).

48. Qualified immunity is no defense to this claim.

49. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

50. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**FIFTH CLAIM FOR RELIEF:
NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION AND TRAINING
AGAINST THE CITY OF NEW YORK**

51. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

52. The City of New York negligently hired, screened, retained, supervised, and trained the Individual Defendants. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff's rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

53. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

54. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

55. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**SIXTH CLAIM FOR RELIEF:
VIOLATION OF ARTICLE I, § 12 OF THE NEW YORK STATE CONSTITUTION
AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

56. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

57. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, 12.

58. As a direct and proximate result of defendants' deprivations of plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution.

59. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

60. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

61. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Individual Defendants, as well as the City of New York:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
July 11, 2024

Rickner PLLC

By: 

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